

petition, or affidavit, to be of unnecessary length, may direct payment of a sum in gross in lieu of taxed costs therefor, or may fix the length at which the same shall be considered on taxation; or may direct the taxing master to look into such pleading, petition, or affidavit, and distinguish what parts or part thereof are or is improper or of unnecessary length; and may direct the taxing-master to ascertain the costs occasioned to any party by such parts or part thereof, as in the one case may have been declared to be, and in the other case may have been distinguished as being improper or of unnecessary length; and may make such order as is just for the payment, set off, or other allowance of such costs, by the party, his solicitor or counsel, as to the Court may seem just.

Costs of pleadings unnecessarily long.

A notice of the filing of any appearance, or pleading, must be always served on the opposite party, under the following rule.

1850.
XLVII.

When any solicitor or party shall cause an appearance to be entered, or an answer, demurrer or replication to be filed, he shall on the same day give notice thereof to the solicitor of the adverse party, or to the adverse party himself, if he act in person.

Notice of filing appearance and pleadings.